

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JERMIINE FORTUNE,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, P.O. GEORGE H.
SPRAGUE, SERGEANT JAMES N. SGAGLIONE and
P.O. JOHN DOES # 1-3,

Defendants.

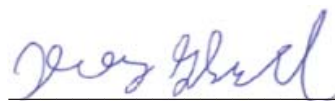
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Queens County as the venue for trial based on the location of the incident: in front of 170-15 116th Avenue, Jamaica, NY 11434.

Dated: Forest Hills, NY
November 13, 2023

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Jeremy Gorfinkel, Esq.
Attorneys for Plaintiff
JERMIINE FORTUNE
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. GEORGE H. SPRAGUE
100 Church Street
New York, NY 10007

SERGEANT JAMES N. SGAGLIONE
100 Church Street
New York, NY 10007

P.O. JOHN DOES # 1-3
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JERMIANE FORTUNE,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. GEORGE H.
SPRAGUE, SERGEANT JAMES N. SGAGLIONE and
P.O. JOHN DOES # 1-3,

Defendants.

-----X

Plaintiff, JERMIANE FORTUNE, by his attorneys, the Law Office of Michael

Dreishpoon, P.C., complaining of the defendants, alleges, upon information and belief, as follows:

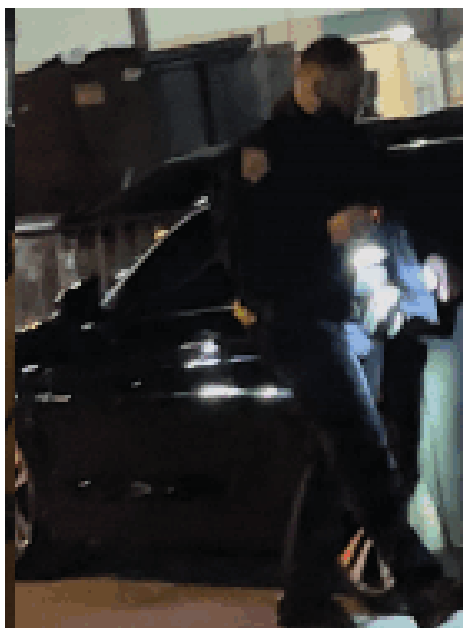
1. At all times herein mentioned, Plaintiff, JERMIANE FORTUNE, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. GEORGE H. SPRAGUE, was an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendant, SERGEANT JAMES N. SGAGLIONE, was an employee of the NYPD.
5. At all times herein mentioned, Defendants, P.O. JOHN DOES # 1-3, were employees of the NYPD.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, maintained,

managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.

7. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and supervised P.O. GEORGE H. SPRAGUE, SERGEANT JAMES N. SGAGLIONE and P.O. JOHN DOES # 1-3 (hereinafter “the individual defendants”).
8. The individual defendants are graduates of the NYPD’s Police Academy.
9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train the individual defendants within the Police Academy and at the command, precinct, and patrol levels, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly, and/or negligently injure citizens such as Plaintiff.
10. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train the individual defendants within the Police Academy and at the command, precinct, and patrol levels, in the protection of Plaintiff’s rights under the Constitution of the United States of America.
11. At all times herein mentioned, the individual defendants were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
12. At all times herein mentioned, Defendants were acting under the color of state law and their acts constituted “state action.”
13. Plaintiff served a Notice of Claim on June 5, 2023 and testified at a General Municipal Law § 50-h hearing on October 3, 2023. More than thirty days have elapsed since the claims upon which this action is founded were presented for adjustment to the comptroller, which has neglected or refused to make an adjustment or payment thereof.

**FIRST CAUSE OF ACTION:
EXCESSIVE FORCE UNDER 42 U.S.C.
§ 1983 & NEW YORK STATE LAW**

14. On the evening of March 29, 2023, Plaintiff was lawfully operating his 2018 BMW 430i automobile (Plate # GRWNAMAN) in Queens County, NY.
15. At approximately 8:45 P.M., Plaintiff noticed that he was being followed, so he stopped his vehicle in front of 170-15 116th Avenue, Jamaica, NY 11434.
16. After Plaintiff stopped his vehicle at the aforementioned location, the vehicle that was following him stopped as well, and one of its occupants activated the vehicle's lights, at which point Plaintiff realized that it was an unmarked police vehicle.
17. Soon thereafter, the two individuals who had been following Plaintiff approached his vehicle.
18. Upon information and belief, those two individuals were P.O. GEORGE H. SPRAGUE and SERGEANT JAMES N. SGAGLIONE, who are depicted (left to right) in the below screenshots:



19. One of the officers, upon information and belief P.O. GEORGE H. SPRAGUE, told Plaintiff he was being stopped, accused Plaintiff of having “some kind of cover on your plate,” and demanded his license and registration.
20. As Plaintiff was reaching for his license and registration, he referred to the NYPD as “assholes,” and later called one of the officers “Fatso,” which one or both officers took umbrage at.
21. One of the officers then ordered Plaintiff to exit his vehicle, which he did.
22. Soon thereafter, both officers grabbed Plaintiff, twisted his arms behind his back, slammed him to the ground, and handcuffed him.
23. After Plaintiff was slammed to the ground, one of the officers placed his knee on Plaintiff’s neck.
24. Eventually, additional officers arrived on the scene, delineated herein as P.O. JOHN DOES # 1-3 and depicted in the below screenshots:



25. The officers then forcibly placed Plaintiff into their vehicle and transported him to the 113th Precinct against his will.

26. Upon information and belief, P.O. GEORGE H. SPRAGUE, SERGEANT JAMES N. SGAGLIONE and P.O. JOHN DOES # 1-3 were among the officers who pushed, beat, handcuffed, roughed up, assaulted and/or tackled Plaintiff at the time and place aforesaid, causing Plaintiff to sustain physical injuries.
27. On March 30, 2023, Plaintiff went to Long Island Jewish Medical Center due to injuries to his bilateral shoulders, bilateral wrists, and left knee.
28. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
29. As a direct and proximate result of Defendants' aforementioned excessive use of force, Plaintiff suffered severe bodily injuries, was rendered sick, sore, lame and disabled, and was forced to spend diverse sums of money in seeking medical care.
30. As a direct and proximate result of these injuries, Plaintiff suffered, and will continue to suffer, continuous pain, suffering, anguish, emotional harm, distress and embarrassment.
31. Defendants' aforementioned actions were done without probable cause, just cause, reasonable grounds, or provocation, and placed Plaintiff in imminent fear of unlawful touching.
32. In addition, P.O. GEORGE H. SPRAGUE, SERGEANT JAMES N. SGAGLIONE and P.O. JOHN DOES # 1-3 actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.
33. Defendants' conduct constituted assault and battery, was excessive, unwarranted, unnecessary, and violent, and violated Plaintiff's rights under the Constitution of the

United States and the laws of the State of New York.

SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C.
§ 1983 & NEW YORK STATE LAW

34. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
35. P.O. GEORGE H. SPRAGUE, SERGEANT JAMES N. SGAGLIONE and P.O. JOHN DOES # 1-3 were among the officers who pushed, beat, handcuffed, roughed up, assaulted and/or tackled Plaintiff at the time and place aforesaid.
36. At the time and place aforesaid, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having committed any crimes.
37. Defendants, their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, and detained Plaintiff.
38. In addition, with full force of arms, Defendants laid hold of and compelled Plaintiff to be detained at the 113th Precinct.
39. Plaintiff was wholly innocent of any criminal charges; nevertheless, he was forced by Defendants to submit to the aforesaid apprehension and detainment entirely against his will.
40. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to

the confinement, and the confinement was not otherwise privileged.

41. Defendants falsely accused Plaintiff of Disorderly Conduct, Unsafe Turn/Failure to Signal, and Failure to Stop At Stop Sign.
42. On April 18, 2023, Plaintiff accepted an adjournment in contemplation of dismissal in Criminal Court, Queens County.
43. On October 17, 2023, all of the charges were dismissed and sealed. A true and accurate copy of Plaintiff's Certificate of Disposition is depicted below:

Certificate #: U-000067143-N

Page 1 of 1



QUEENS CRIMINAL COURT
125-01 Queens Boulevard, Kew Gardens, NY 11415
Phone: (718) 298-0792 Fax: (718) 520-2451

NO FEE
Non-Public
Version

Court ORI: NY040033J

The People of the State of New York
vs.
Jermine Fortune

Certificate of Disposition

Docket Number: **CR-009450-23QN**

CJTN: 70257762Z

NYSID: 15739439L

Defendant DOB: **08/13/1993**

Arrest Date: **03/29/2023**

Arraignment Date: **04/18/2023**

THIS IS TO CERTIFY that the undersigned has examined the files of the **Queens Criminal Court** concerning the above entitled matter and finds the following:

Count #	Charge	Charge Weight	Disposition	Disposition Date
1	PL 240.20 01 V Dis/Con:Fight/Violent Behavior	V	ACD (04/18/23) dismiss and seal on 10/17/23	04/18/2023
2	VTL 1163 0A 1 Unsafe Turn/Fail To Signal	I	ACD (04/18/23) dismiss and seal on 10/17/23	04/18/2023
3	VTL 1172 0A 1 Failed To Stop At Stop Sign	I	ACD (04/18/23) dismiss and seal on 10/17/23	04/18/2023

Charge Weight Key: I=Infraction; V=Violation; AM, BM=Class Misdemeanor; UM=Unclassified Misdemeanor; AF, BF, CF, DF, EF=Class Felony

Dated: **April 21, 2023**

Chief Clerk/Clerk of the Court

CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE COURT SEAL

44. By reason of the foregoing false imprisonment, Plaintiff was subjected to indignity, humiliation, ridicule, and loss of liberty.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION**

45. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
46. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individual defendants, as well as the other officers involved.
47. As a result of the above-mentioned negligence, NYPD officers, including the individual defendants, assaulted, battered, and falsely arrested Plaintiff.
48. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.
49. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, the excessive use of force.
50. This failure led to the individual defendants assaulting, battering, and falsely arresting Plaintiff at the time and place aforesaid in the manner aforesaid.
51. Plaintiff's damages on each of the foregoing causes of action exceed the jurisdictional limits of the lower courts of the State of New York.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
November 13, 2023

Yours, etc.,

A handwritten signature in blue ink, appearing to read "Jeremy Gorfinkel", is written over a horizontal line.

Law Office of Michael Dreishpoon, P.C.

Jeremy Gorfinkel, Esq.

Attorneys for Plaintiff

JERMIANE FORTUNE

118-35 Queens Blvd., Ste. 1500

Forest Hills, NY 11375

718-793-5555

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

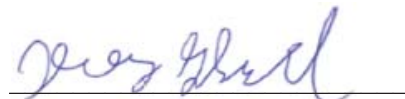
I, JERMINE FORTUNE, being duly sworn, depose and say:

(1) I am the Plaintiff in the within action.

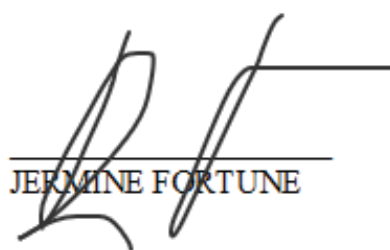
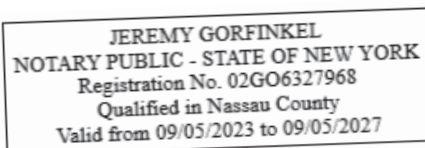
(2) I have read the foregoing complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.

Sworn to before me this
13th day of November, 2023



Notary Public


JERMINE FORTUNE

Jermine fortune